

SENATE No. 1167

The Commonwealth of Massachusetts

PRESENTED BY:

Joan B. Lovely

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to protect nonhuman primate infants in research institutions and product testing facilities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Joan B. Lovely</i>	<i>Second Essex</i>	
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>2/6/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>3/6/2025</i>
<i>Lydia Edwards</i>	<i>Third Suffolk</i>	<i>3/13/2025</i>
<i>Michael J. Barrett</i>	<i>Third Middlesex</i>	<i>3/21/2025</i>
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	<i>3/27/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>4/2/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>4/2/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>4/16/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>5/15/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>7/9/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>7/29/2025</i>
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	<i>8/25/2025</i>

SENATE No. 1167

By Ms. Lovely, a petition (accompanied by bill, Senate, No. 1167) of Joan B. Lovely, Michael D. Brady and Michael O. Moore for legislation to protect nonhuman primate infants in research institutions and product testing facilities. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to protect nonhuman primate infants in research institutions and product testing facilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 272 of the General Laws is hereby amended by inserting after
2 Section 80G the following new section:-

3 Section 80G1/2.

4 (a) As used in this section, the following words shall have the following meanings unless
5 the context clearly requires otherwise:

6 “Commissioner”, the commissioner of the Massachusetts Department of Public Health.

7 “Contract testing facility”, a partnership, corporation, association, or other legal
8 relationship that tests cosmetics or other products, product formulations, chemicals, or
9 ingredients.

“Product testing facility”, a facility that is using animals for the testing of consumer products, including, but not limited to, cosmetics, pesticides, medical devices, food additives, and ingredients for use in such products.

“Research institution”, any facility employing nonhuman primates in scientific, investigation, experiment or instruction or for the testing of drugs or medicines licensed by the commissioner of public health under section 174D.

“Nonhuman primate (NHP)”, any primate species except humans, including but not limited to rhesus macaques, long-tailed (i.e., crab-eating or cynomolgus) macaques, stump-tailed macaques pig-tailed macaques, squirrel monkeys, owl monkeys, African green monkeys, marmosets, baboons, spider monkeys, capuchin monkeys, and titi monkeys.

(b) A research institution or product testing facility that utilizes infant NHPs in experiments shall not remove or separately house the infants from their respective biological mothers for the purposes of research, experimentation, or product testing.

(c) An infant NHP may be temporarily removed or separately housed from its mother only for the medical welfare of either or both NHPs. Upon removal or separation, psychological and physical distress shall be minimized for both NHPs and reunion of the NHPs shall not be delayed unless medically necessary.

(d) The prohibition in subsection (b) shall begin at the time of the infant NHP’s birth through his/her first twelve (12) months of life.

(e) The commissioner shall promulgate regulations to implement, enforce, and administer this section.

31 SECTION 2. The commissioner shall promulgate regulations to implement this Act no
32 later than ninety (90) days following its passage. Section 1 shall take effect 90 days after passage
33 of this Act and Section 2 shall take effect upon passage of this Act.